

**IN THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION, CAPE TOWN**

CASE NO: 2026-086906

In the matter between:

AFROCENTRIC INVESTMENT CORPORATION LIMITED

Applicant

and

WILBUR WILLIAM MATTHEE

Respondent

ANSWERING AFFIDAVIT

I, the undersigned,

WILBUR WILLIAM MATTHEE

do hereby make oath and state that:

I. INTRODUCTION AND DEPONENT'S STATUS

1. I am an adult male, a registered Specialist Nurse, the founder of EthicHawks Forensic Governance & Compliance, and the Respondent in this urgent application. I reside in Cape Town, Western Cape.
2. The facts contained in this affidavit are, unless the context indicates otherwise, within my own personal knowledge and are to the best of my belief both true and correct. Where I make legal submissions, I do so on the advice of my legal representatives, which advice I believe to be sound.
3. I am opposing this application for civil contempt. The Applicant seeks to have me imprisoned for a period of three months. Because the Applicant seeks a deprivation of my physical liberty, the evidentiary standard they must meet is proof **beyond a reasonable doubt**.

4. As I will demonstrate below, this application is not a genuine attempt to enforce a court order. It is a vexatious proxy war, a transparent abuse of process, and an attempt to weaponize the courts to punish me after the Applicant failed to unlawfully dictate terms to the Speaker of the National Assembly. Furthermore, the Applicant has anchored its founding affidavit on inadmissible, privileged communications and structurally fatal concessions.

II. POINTS IN LIMINE (APPLICATIONS TO STRIKE OUT)

A. First Point In Limine: Flagrant Breach of “Without Prejudice” Privilege (Paragraphs 46–47.6)

5. I apply for paragraphs 46 through 47.6 of the Founding Affidavit to be struck out in their entirety, with a punitive costs order against the Applicant.
6. In these paragraphs, the Applicant explicitly details the timeline and mechanics of private settlement discussions that occurred between June 4 and June 22, 2026. The Applicant concedes in paragraph 47 that these communications were “without prejudice,” yet proceeds to lay them before this Court.
7. Under South African law, settlement negotiations are strictly privileged. The Applicant initiated an invitation to explore methods to resolve the disputes and “alleviate personal circumstances” (as they admit in paragraph 46). I engaged in good faith, offering them an opportunity to resolve the systemic issues privately and save face.
8. The Applicant has maliciously breached this absolute privilege, attempting to reframe a quantified settlement proposal as “criminal extortion” to prejudice the

mind of this Court. This is structurally inadmissible and constitutes a gross abuse of civil procedure.

B. Second Point In Limine: Scandalous, Vexatious, and Irrelevant Pleading (Paragraph 15)

9. I apply for paragraph 15 of the Founding Affidavit to be struck out.
10. The Applicant attempts to introduce commentary regarding my financial status and alleged mental health challenges under the guise of being “mindful” of my circumstances.
11. This is toxic benevolence designed solely to patronize me and color the Court’s perception. My financial standing or personal health history has absolutely zero legal relevance to the objective interpretation of an interim interdict or the strict legal test for civil contempt. It is vexatious and highly prejudicial.

C. Third Point In Limine: Fatal Jurisdictional Concession (Paragraph 69)

12. In paragraph 69, the Applicant pleads: “Alternatively, even if Parliament is not itself a regulatory body within the meaning of paragraph 2.3...”
13. By relying on this “alternative” interpretation, the Applicant formally concedes that the Parliament of the Republic of South Africa is not explicitly covered by the text of the interim interdict.
14. Court orders must be interpreted strictly. The Applicant cannot seek to have a citizen imprisoned beyond a reasonable doubt based on an expanded, speculative, or “alternative” reading of an order. The interdict did not, and

constitutionally could not, bar submissions to the supreme legislative body of the state.

III. THE MERITS: THE ABSENCE OF MALA FIDES AND CONTEMPT

15. Under the binding authority of the Supreme Court of Appeal in *Fakie NO v CCII Systems (Pty) Ltd*, civil contempt requires proof of wilful disobedience and mala fides (bad faith). If a respondent acts on a stateable, bona fide legal interpretation, contempt is entirely negated.
16. The Applicant has defeated its own case for mala fides in paragraphs 25 and 26 of their Founding Affidavit by annexing my “Legal Note on Constitutional Oversight vs. Contempt of Court.”
17. As those annexed documents prove, my submission of the Systemic Governance Collapse forensic bundle to Parliament June 2026, was not a clandestine act of defiance. It was a transparent, legally reasoned exercise of my constitutional rights under Sections 56 and 69 of the Constitution. I openly asserted that Parliament is an independent arm of the state tasked with oversight, not a subordinate “regulatory body” bound by the commercial parameters of the Applicant’s interdict.
18. I acted on a deeply held, constitutionally grounded belief. There is no bad faith, and therefore, no contempt.

IV. THE “EXTORTION” NARRATIVE (PARAGRAPHS 8, 16, AND 60)

19. The Applicant repeatedly attempts to frame my quantified claim of R7,307,642.72 as extortion.
20. I deny this categorically. This figure was an actuarially formulated quantum for occupational detriment and statutory damages, presented during the very settlement negotiations the Applicant themselves invited. Providing a quantified legal claim during privileged settlement positioning is standard practice. Framing this as a criminal demand is a deliberate distortion of facts to manufacture a crisis where none exists.

V. THE TRUE MOTIVATION FOR THIS URGENT APPLICATION

21. The true catalyst for this application is exposed in the Applicant's own admissions in paragraphs 61, 82, and 84.
22. The Applicant's attorneys wrote heavy-handed letters to the Speaker of the National Assembly, demanding undertakings to suppress my forensic bundle. The Speaker rightfully ignored them.
23. Because the Applicant failed to dictate terms to the legislature, they have launched this urgent application against me as a proxy war. They seek to use the threat of a three-month prison sentence to force me to retract evidence that is already lawfully housed within the parliamentary record. This Court should not countenance such an abuse of its contempt mechanisms.

VI. CONCLUSION

24. The Applicant has failed to establish the foundational requirements for civil contempt beyond a reasonable doubt. They have relied on a fatally flawed interpretation of their own interdict, breached absolute legal privilege, and ignored the binding precedent of *Fakie NO*.
25. I respectfully submit that this application falls to be dismissed.
26. Given the Applicant's egregious inclusion of "without prejudice" negotiations and scandalous personal material, I submit this is a fitting matter for a punitive costs order to mark the Court's displeasure.

WHEREFORE I pray that the application be dismissed, and that the Applicant be ordered to pay the costs of this application on an attorney-and-client scale.

DEPONENT: WILBUR WILLIAM MATTHEE

I certify that the Deponent has acknowledged that he knows and understands the contents of this Affidavit, which was signed and sworn to before me at CAPE TOWN on this _____ day of JULY 2026, the regulations contained in Government Notice No. R1258 of 21 July 1972 (as amended) having been complied with.

COMMISSIONER OF OATHS

Full Names: _____

Designation: _____

Address: _____